

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
CHIEF JUDGE WILEY Y. DANIEL**

Courtroom Deputy: Robert R. Keech
E.C.R./Reporter: Tammy Hoffschildt

Date: August 29, 2012

Civil Action No: **09-cv-02413-WYD-KMT**

Counsel:

CROSS CONTINENT DEVELOPMENT,

Victor M. Morales
Katherine A. Kelley

Plaintiff,

v.

TOWN OF AKRON, et al.,

Peter H. Doherty
Mary A. Wells

Defendants.

COURTROOM MINUTES

TRIAL TO JURY (DAY 7)

9:00 a.m. JURY ARRIVES TO COMMENCE DELIBERATIONS

11:37 a.m. Court in Session - Jury not present

Court's remarks regarding question from jury (NOTE ATTACHED).

11:37 a.m. Discussion regarding response to note from jury.

11:41 a.m. Jury enters

Court responds to note from jury.

11:43 a.m. Jury excused to continue deliberations.

Court's remarks to counsel regarding availability.

11:45 a.m. Court in Recess

3:53 p.m. Court in Session - Jury not present

Court informs counsel that jury has reached a verdict (NOTE ATTACHED).

3:55 p.m. Jury enters

Court reads jury verdict.

Pursuant to General Order 2007-3 the original Jury Verdict has been filed conventionally by delivery to the Clerk's Office. A representation of the Jury Verdict is attached to the court minutes.

3:59 p.m. Jury is not polled.

Court thanks jurors for their service and they are discharged.

4:00 p.m. Jury excused

Court's closing remarks to counsel.

4:02 p.m. Court in Recess - TRIAL CONCLUDED.

CLERK'S NOTE: EXHIBITS WERE RETURNED TO COUNSEL AT THE CONCLUSION OF THE TRIAL.

TOTAL TIME: :17